

Ref No.: **BD-CW-SAMCO-ACE-LET-STR-076**

9-May-2026

To: **ACE Project Management | Moharram Bakhoun**

Attention: **Eng. Abdulaziz Mohamed (Project Manager)**

Project Name: **The Big Business District.**

Contract/Package: **Construction Works.**

Subject: **Notice of Claim – Impact of Revised Structural Drawings on Project Progress [Sub-Clause 1.9 / 8.4 / 20.1]**

Dear Sir,

We hereby submit this Notice of Claim to formally record the impact resulting from the issuance of revised structural drawing packages and the subsequent instructions received.

We would like to clarify that we proceeded with construction works based on the latest approved structural package received on 27/10/2025, upon which shop drawings were prepared, submitted, and duly approved. Accordingly, a substantial portion of the column works was executed at site in compliance with these approved documents.

On 24/03/2026, we received an updated structural package. Upon detailed review, multiple discrepancies were identified, particularly concerning column dimensions and grid alignments. Consequently, we submitted a Request for Information (RFI) addressing these conflicts. In response, we were instructed to disregard the column dimensions indicated in the updated package and to proceed with column execution as per the previously approved package under which works had already commenced and progressed.

However, during subsequent discussions with the Consultant regarding additional discrepancies identified in slab elements, we were instructed to follow the latest updated structural package. This directive effectively required the application of two different structural packages simultaneously, which is technically inconsistent and not acceptable from an engineering and execution standpoint due to the inherent conflicts between both packages. Furthermore, we would like to highlight that site activities were directly impacted. Shuttering works for the slab of Building B3 had already commenced based on approved shop drawings developed in line with the structural package issued on 27/10/2025.

However, due to the discrepancies arising from the subsequently issued updated package and the conflicting instructions received, these activities were suspended, as proceeding based on the earlier approved shop drawings would have resulted in technical inconsistencies. Accordingly, works remained on hold pending technical clarification and formal direction from the Consultant, which was only concluded upon the issuance of the final coordinated revised structural package on 30/04/2026.



As a result of these conflicting instructions and unresolved discrepancies, shop drawing development and related construction activities, including construction sequencing, were disrupted and effectively suspended from 24/03/2026 until 30/04/2026.

Accordingly, we hereby notify you that the above circumstances have caused delays to the progress of the Works, particularly impacting the Critical Path of the Programme. Therefore, we reserve our right to claim an Extension of Time (EOT) together with all associated costs, whether direct or indirect, to be fully detailed and substantiated in due course in accordance with the Contract.

This Notice is submitted in accordance with Sub-Clause 20.1 of the Contract to preserve all our contractual rights.

Yours sincerely,

Eng./ Mohammed Sami Mohammed

Project Director

SAMCO National Construction

